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THE NATIONAL ARCHIVES

FEDERAL REGISTER

OF THE UNITED STATES

VOLUME I — 1934 — NUMBER 64

Washington, Thursday, June 11, 1936

PRESIDENT OF THE UNITED STATES.

EXECUTIVE ORDER

APPOINTMENT OF THOMAS NEBLETT AND ROSE TURLIN AS MEMBERS OF THE NATIONAL ADVISORY COMMITTEE OF THE NATIONAL YOUTH ADMINISTRATION

By virtue of and pursuant to the authority vested in me under the Emergency Relief Appropriation Act of 1935, approved April 8, 1935 (49 Stat. 115), Executive Order No. 7123 of August 1, 1935, is hereby amended by adding the names of the following persons to those appointed to serve as members of the National Advisory Committee of the National Youth Administration, established by Executive Order No. 7086 of June 26, 1935, and such persons are hereby appointed to serve as members thereof under the terms of the said order:

Thomas Neblett
Rose Turlin

FRANKLIN D ROOSEVELT

THE WHITE HOUSE
June 8, 1936.

[No. 7384]

[F. R. Doc. 864—Filed, June 9, 1936; 2:58 p. m.]

EXECUTIVE ORDER

WITHDRAWAL OF PUBLIC LAND FOR ADMINISTRATIVE SITE

Colorado

By virtue of and pursuant to the authority vested in me by the act of June 25, 1910, ch. 421, 36 Stat. 847, as amended by the act of August 24, 1912, ch. 369, 37 Stat. 497, it is ordered as follows:

SECTION 1. Executive Order No. 5089 of April 9, 1929, temporarily withdrawing certain public lands in Colorado for classification and in aid of legislation, is hereby revoked as to the following-described land:

SIXTH PRINCIPAL MERIDIAN

T. 1 S., R. 78 W., sec. 34, NE¼SW¼, 40 acres.

SECTION 2. Subject to valid existing rights and to an outstanding power-site reservation, the tract of land described in section 1 of this order is hereby temporarily withdrawn from settlement, location, sale, or entry and reserved for use by the Forest Service of the Department of Agriculture as an administrative site in connection with the administration of the Arapaho National Forest.

SECTION 3. Section 2 of this order shall continue in force and effect unless and until revoked by the President or by act of Congress.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
June 8, 1936.

[No. 7386]

[F. R. Doc. 865—Filed, June 9, 1936; 2:58 p. m.]

TREASURY DEPARTMENT.

Accounts and Deposits.

The original of the document entitled "Post Offices Designated as Places for the Redemption of Bonds Issued Pursuant to Section 4 of the Adjusted Compensation Act, 1936, as Amended", printed in the Federal Register for Tuesday, June 9, 1936, signed by Wayne C. Taylor, Acting Secretary of the Treasury, bears the date "June 6, 1936." The text of this document may be found at 1 F. R. 653.

DEPARTMENT OF AGRICULTURE.

Agricultural Adjustment Administration.

W. R.—B-4—California. Issued June 6, 1936.

1936 AGRICULTURAL CONSERVATION PROGRAM—WESTERN REGION

BULLETIN NO. 4—CALIFORNIA

County Average Rates of Soil-Conserving Payments in Connection With the General Soil-Depleting Base

Pursuant to the authority vested in the Secretary of Agriculture under Section 8 of the Soil Conservation and Domestic Allotment Act, Western Region Bulletin No. 1 Revised[1] is hereby supplemented with respect to its application to the State of California, but not otherwise, as follows:

SECTION 1. *County Average Rates of Soil-Conserving Payments for Production of Soil-Conserving Crops on Acreage Diverted from the General Soil-Depleting Base.*—In accordance with the provisions of Section 2 (a) of Part II of Western Region Bulletin No. 1 Revised, and subject to the provisions of said bulletin and all other bulletins heretofore or hereafter issued, the county average rates of payment per acre to be used in determining payments for each acre of the general soil-depleting base which in 1936 is used for the production of soil-conserving crops shall be as follows for the respective counties in the State of California:

County—Rate of payment per acre

Alameda, $11.40; Alpine, $13.90; Amador, $10.10; Butte, $13.60; Calaveras, $9.30; Colusa, $12.40; Contra Costa, $13.20; Del Norte, $15.20; Eldorado, $8.70; Fresno, $12.40; Glenn, $12.00; Humboldt, $16.90; Imperial, $13.80; Inyo, $11.10; Kern, $13.20; Kings, $15.00; Lake, $10.80; Lassen, $8.20; Los Angeles, $14.60; Madera, $8.00; Marin, $15.90; Mariposa, $8.10; Mendocino, $12.90; Merced, $12.00; Modoc, $10.00; Mono, $8.60; Monterey, $11.50; Napa, $12.10; Nevada, $10.50; Orange, $11.30; Placer, $7.70; Plumas, $9.20; Riverside, $10.30; Sacramento, $12.10; San Benito, $9.10; San Bernardino, $15.00; San Diego, $8.40; San Francisco, $13.20; San Joaquin, $14.10; San Luis Obispo, $9.10; San Mateo, $12.50; Santa Barbara, $9.80; Santa Clara, $11.70; Santa Cruz, $12.10; Shasta, $10.50; Sierra, $9.10; Siskiyou, $10.50; Solano, $13.10; Sonoma, $14.40; Stanislaus, $13.70; Sutter, $13.50; Tehama, $11.00; Trinity, $9.10; Tulare, $11.70; Tuolumne, $8.70; Ventura, $13.50; Yolo, $14.00; Yuba, $9.90.

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[1] 1 F. R. 301.

FEDERAL REGISTER

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SECTION 2. *Rates of Payment as Applied to Individual Farms.*—For individual farms in the foregoing counties, the rate of payment for each acre of the general soil depleting base (not in excess of 15 percent of the general soil depleting base for any farm) which in 1936 is used for the production of a soil conserving crop, shall be that rate determined by multiplying the county average rate for the county in which the farm is located by the productivity index established for the farm in accordance with the provisions of Section 1, Part I, Western Region Bulletin No. 3,[2] and then dividing the result by 100.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 6th day of June 1936.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 873—Filed, June 10, 1936; 11:32 a. m.]

[2] 1 F. R. 503.

W. R.—B-4—Idaho Issued June 6, 1936

1936 AGRICULTURAL CONSERVATION PROGRAM—WESTERN REGION

BULLETIN NO. 4—IDAHO

County Average Rates of Soil-Conserving Payments in Connection with the General Soil-Depleting Base

Pursuant to the authority vested in the Secretary of Agriculture under Section 8 of the Soil Conservation and Domestic Allotment Act, Western Region Bulletin No. 1, Revised,[1] is hereby supplemented with respect to its application to the State of Idaho, but not otherwise, as follows:

SECTION 1. *County Average Rates of Soil-Conserving Payments for Production of Soil-Conserving Crops on Acreage Diverted from the General Soil-Depleting Base.*—In accordance with the provisions of Section 2 (a) of Part II of Western Region Bulletin No. 1, Revised, and subject to the provisions of said bulletin and all other bulletins heretofore or hereafter issued, the county average rates of payment per acre to be used in determining payments for each acre of the general soil-depleting base which in 1936 is used for the production of soil-conserving crops, shall be as follows for the respective counties in the State of Idaho, except that in any county in which acreage devoted to summer fallow or clean cultivated orchards is included in the total soil-depleting base, a downward adjustment will be made in these average rates in proportion to the amount of acreage devoted to summer fallow and clean cultivated orchards which has been included in the total soil-depleting bases established in the county, such adjustment to be made after completion of the County Listing Sheet and the amount of such acreage included in the total soil-depleting bases in the county, has been determined:

County—Rate of payment per acre

Ada, $19.60; Adams, $9.50; Bannock, $13.10; Bear Lake, $10.20; Benewah, $13.30; Bingham, $19.30; Blaine, $12.00; Boise, $9.30; Bonner, $8.10; Bonneville, $17.20; Boundary, $20.30; Butte, $11.50; Camas, $7.30; Canyon, $23.30; Caribou, $9.30; Cassia, $15.70; Clark, $9.60; Clearwater, $10.40; Custer, $8.90; Elmore, $12.80; Franklin, $14.90; Fremont, $12.60; Gem, $16.80; Gooding, $16.80; Idaho, $13.90; Jefferson, $16.70; Jerome, $22.40; Kootenai, $10.50; Latah, $15.10; Lemhi, $12.80; Lewis, $14.50; Lincoln, $14.10; Madison, $12.80; Minidoka, $20.60; Nez Perce, $14.20; Oneida, $11.20; Owyhee, $19.00; Payette, $19.90; Power, $9.10; Shoshone, $8.50; Teton, $9.70; Twin Falls, $20.90; Valley, $7.60; Washington, $13.30.

SECTION 2. *Rates of Payment as Applied to Individual Farms.*—For individual farms in the foregoing counties, the rate of payment for each acre of the general soil depleting base (not in excess of 15 percent of the general soil depleting base for any farm) which in 1936 is used for the production of a soil conserving crop, shall be that rate determined by multiplying the county average rate for the county in which the farm is located by the productivity index established for the farm in accordance with the provisions of Section 1, Part I, Western Region Bulletin No. 3,[2] and then dividing the result by 100.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 6th day of June 1936.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 871—Filed, June 10, 1936; 11:31 a. m.]

W. R.—B-4—Montana Issued June 6, 1936

1936 AGRICULTURAL CONSERVATION PROGRAM—WESTERN REGION

BULLETIN NO. 4—MONTANA

County Average Rates of Soil-Conserving Payments in Connection With the General Soil-Depleting Base

Pursuant to the authority vested in the Secretary of Agriculture under Section 8 of the Soil Conservation and

[1] 1 F. R. 301.
[2] 1 F. R. 503.

Domestic Allotment Act, Western Region Bulletin No. 1, Revised,[1] is hereby supplemented with respect to its application to the State of Montana, but not otherwise, as follows:

SECTION 1. *County Average Rates of Soil-Conserving Payments for Production of Soil-Conserving Crops on Acreage Diverted from the General Soil-Depleting Base.*—In accordance with the provisions of Section 2 (a) of Part II of Western Region Bulletin No. 1, Revised, and subject to the provisions of said bulletin and all other bulletins heretofore or hereafter issued, the county average rates of payment per acre to be used in determining payments for each acre of the general soil-depleting base which in 1936 is used for the production of soil-conserving crops shall be as follows for the respective counties in the State of Montana except that in any county in which acreage devoted to summer fallow is included in the total soil-depleting base, a downward adjustment will be made in these average rates in proportion to the amount of acreage devoted to summer fallow which has been included in the total soil-depleting bases established in the county, such adjustment to be made after the completion of the County Listing Sheet and the amount of such acreage included in the total soil-depleting bases in the county has been determined:

County—Rate of payment per acre

Beaverhead, $11.60; Big Horn, $8.10; Blaine, $8.70; Broadwater, $9.60; Carbon, $11.10; Carter, $6.60; Cascade, $10.10; Chouteau, $9.40; Custer, $5.80; Daniels, $7.50; Dawson, $6.40; Deer Lodge, $9.90; Fallon, $6.70; Fergus, $9.20; Flathead, $10.50; Gallatin, $11.90; Garfield, $5.80; Glacier, $8.00; Golden Valley, $5.50; Granite, $9.70; Hill, $7.60; Jefferson, $8.40; Judith Basin, $8.00; Lake, $10.60; Lewis and Clark, $8.00; Liberty, $7.00; Lincoln, $8.80; McCone, $6.00; Madison, $11.20; Meagher, $6.80; Mineral, $8.80; Missoula, $9.40; Musselshell, $5.30; Park, $9.80; Petroleum, $5.20; Phillips, $7.10; Pondera, $10.40; Powder River, $6.20; Powell, $8.80; Prairie, $5.70; Ravalli, $11.80; Richland, $7.20; Roosevelt, $7.10; Rosebud, $6.00; Sanders, $9.90; Sheridan, $7.30; Silver Bow, $10.60; Stillwater, $7.80; Sweet Grass, $8.00; Teton, $10.70; Toole, $7.70; Treasure, $6.80; Valley, $6.90; Wheatland, $5.60; Wibaux, $7.10; Yellowstone, $8.40.

SECTION 2. *Rates of Payment as Applied to Individual Farms.*—For individual farms in the foregoing counties, the rate of payment for each acre of the general soil-depleting base (not in excess of 15 percent of the general soil-depleting base for any farm) which in 1936 is used for the production of soil-conserving crops, shall be that rate determined by multiplying the county average rate for the county in which the farm is located, by the productivity index established for the farm in accordance with the provisions of Section 1, Part I, Western Region Bulletin No. 3,[2] and then dividing the result by 100.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 6th day of June 1936.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 874—Filed, June 10, 1936; 11:32 a. m.]

W. R.—B-4—Wyoming Issued June 6, 1936

1936 AGRICULTURAL CONSERVATION PROGRAM—WESTERN REGION

BULLETIN NO. 4—WYOMING

County Average Rates of Soil-Conserving Payments in Connection With the General Soil-Depleting Base

Pursuant to the authority vested in the Secretary of Agriculture under Section 8 of the Soil Conservation and Domestic Allotment Act, Western Region Bulletin No. 1, Revised,[1] is hereby supplemented with respect to its application to the State of Wyoming, but not otherwise, as follows:

SECTION 1. *County Average Rates of Soil-Conserving Payments for Production of Soil-Conserving Crops on Acreage Diverted from the General Soil-Depleting Base.*—In accordance with the provisions of Section 2 (a) of Part II of Western Region Bulletin No. 1, Revised, and subject to the provisions of said bulletin and all other bulletins heretofore or hereafter issued, the county average rates of payment per acre to be used in determining payments for each acre of the general soil-depleting base which in 1936 is used for the production of soil-conserving crops, shall be as follows for the respective counties in the State of Wyoming:

County—Rate of payment per acre

Albany, $8.80; Big Horn, $11.50; Campbell, $5.60; Carbon, $9.10; Converse, $5.20; Crook, $7.40; Fremont, $11.50; Goshen, $6.80; Hot Springs, $10.00; Johnson, $7.20; Laramie, $5.10; Lincoln, $8.60; Natrona, $7.10; Niobrara, $5.00; Park, $14.10; Platte, $6.60; Sheridan, $9.10; Sublette, $6.60; Sweetwater, $10.60; Teton, $9.30; Uinta, $10.10; Washakie, $15.30; Weston, $7.20.

SECTION 2. *Rates of Payment as Applied to Individual Farms.*—For individual farms in the foregoing counties the rate of payment for each acre of the general soil-depleting base (not in excess of 15 percent of the general soil-depleting base for any farm), which in 1936 is used for the production of a soil-conserving crop, shall be that rate determined by multiplying the county average rate for the county in which the farm is located by the productivity index established for the farm in accordance with the provisions of Section 1, Part I, Western Region Bulletin No. 3,[2] and then dividing the result by 100.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 6th day of June 1936.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 872—Filed, June 10, 1936; 11:31 a. m.]

Bureau of Biological Survey.

CIRCULAR NO. 13

REGULATIONS RESPECTING GAME ANIMALS, LAND FUR-BEARING ANIMALS, GAME BIRDS, NONGAME BIRDS, AND NESTS AND EGGS OF BIRDS IN ALASKA

Pursuant to the authority and direction contained in section 10 of the Alaska game law of January 13, 1925 (43 Stat. 739; U. S. Code, title 48, sec. 198), as amended by act of February 14, 1931 (46 Stat. 1111; U. S. Code, Supp., title 48, sec. 198), upon consultation with and/or recommendation from the Alaska Game Commission, and having determined when, to what extent, and by what means game animals, land fur-bearing animals, game birds, nongame birds, and nests and eggs of birds may be taken, possessed, transported, bought, or sold in Alaska, I, R. G. Tugwell, Acting Secretary of Agriculture, do hereby adopt and publish the following regulations as suitable regulations permitting and governing the same, to be effective on July 1, 1936:

REGULATION 1. DEFINITIONS

For the purpose of these regulations the following shall be construed, respectively, to mean:

Secretary.—The Secretary of Agriculture of the United States.

Commission.—The Alaska Game Commission.

Territory.—The Territory of Alaska.

Summit of Alaska Range and Ahklun Mountains.—A continuous irregular line extending from the international boundary to Cape Newenham, following the divide separating the upper Yukon and the Tanana River drainage from the streams flowing into the Gulf of Alaska, Prince William Sound, and Cook Inlet; thence along the main Alaska Range following the divide between the streams flowing into the Tanana and Kuskokwim Rivers and those flowing into Cook Inlet; thence southwesterly to Cape Newenham following the

[1] 1 F. R. 301.
[2] 1 F. R. 503.

[2] 1 F. R. 503.

divide separating the streams flowing into the Kuskokwim River and Kuskokwim Bay from those flowing into Cook Inlet and Bristol Bay.

Person.—The plural or the singular as the case demands, including individuals, associations, partnerships, and corporations, unless the context otherwise requires.

Take.—To take, pursue, disturb, hunt, capture, trap, or kill, or to attempt to take, pursue, disturb, hunt, capture, or kill game animals, land fur-bearing animals, game or nongame birds, or setting or using a net, trap, or other device for taking them, or collecting the nests or eggs of such birds.

Open season.—The time during which birds or animals may lawfully be taken. Each period of time prescribed as an open season shall be construed to include the first and last days thereof.

Close season.—The time during which birds and animals may not be taken.

Transport.—To ship, transport, carry, import, export, or receive or to deliver for shipment, transportation, carriage, or export unless the context otherwise requires.

Game animals.—Deer, moose, caribou, elk, mountain sheep, mountain goat, large brown and grizzly bears, and such other animals as have been or may hereafter be introduced, including buffalo (bison), which shall be known as big game.

Land fur-bearing animals.—Beaver, muskrat, marmot, ground squirrel (spermophile), fisher, foxes, lynx, marten or sable, mink, weasel or ermine, land otter, wolverine, polar bear, and black bear, including its brown and blue (or glacier bear) color variations.

Game birds.—Migratory waterfowl, commonly known as ducks, geese, brant, and swans; shore birds, commonly known as plovers, sandpipers, snipe, and curlew; little brown crane; the several species of grouse and ptarmigan; and such other birds as have been or may hereafter be introduced, including Chinese or ring-necked pheasants, which shall be known as small game.

Nongame birds.—All wild birds except game birds.

REGULATION 2. LICENSES OF HUNTERS, TRAPPERS, AND GUIDES

Nothing in these regulations shall be construed to permit a person to take animals or birds or to act as a guide in the Territory unless he shall be in possession of a valid license, bearing his signature written in ink on the face thereof, if he is required by the Alaska game law or regulations thereunder to have a license to take animals or birds or to act as a guide, and he shall have his license on his person when taking animals or birds or acting as a guide, and shall produce it for inspection by any game warden or other person requesting to see it.

Nothing in regulation 15 shall be deemed to exempt any person from the requirements of this regulation.

Each application for a license required under the Alaska game law shall be made on the form prescribed by the Commission and obtained from a person authorized to issue licenses, and if the application is made by mail it shall be accompanied by a draft on a Juneau bank or an express or postal money order payable to the Commission for the amount of the license fee.

REGULATION 3. POSSESSION AND TRANSPORTATION OF GAME ANIMALS AND GAME BIRDS

Game animals (except live animals) in numbers not exceeding the maximum seasonal limits prescribed by regulation 11, the hides, heads, and feet of game animals, articles made from such hides, heads, or feet, grouse and ptarmigan, and the skins and feathers of game birds, legally taken during the open season, may be possessed and transported at any time within the Territory by any person.

Any person may without a license possess and transport at any time within or out of the Territory the shed antlers of caribou, moose, and deer.

Any person may transport within the Territory during the period constituting the open season therefor migratory game birds legally taken during the open season, and any such migratory game birds or parts thereof in transit during the open season may continue in transit for such additional time immediately succeeding such open season not to exceed 5 days, as may be necessary to deliver the same to their destination and may be possessed within the Territory during the period constituting the open season and for an additional period of 10 days next succeeding such open season, but no person shall possess a greater number of migratory game birds, including ducks, geese, and brant, than is permitted by the regulations of the Secretary of Agriculture under the Migratory Bird Treaty Act.

A nonresident may possess and transport at any time within or out of the Territory the skins and feathers of game birds and any article manufactured from the hides or hoofs of caribou, deer, or mountain goats, legally taken.

A nonresident citizen who is the holder of a valid game license, or a nonresident alien who is the holder of an alien special license, may possess and transport at any time within or out of the Territory one moose, three deer, two caribou, excepting if such caribou are from the Alaska Peninsula as particularly described in regulation 11, then only one, two mountain sheep excepting if such sheep are from the Kenai Peninsula as particularly described in regulation 11, then only one, two mountain goats, and two in the aggregate of large brown and grizzly bears, and not to exceed 1 day's bag limit of resident game birds and the maximum possession limit of migratory game birds as prescribed in regulation 13, or any parts of such animals, but no more of any one kind legally taken by him; but before any big-game animal or game bird or part thereof shall be transported out of the Territory, the person desiring to make a shipment shall first make and deliver to the transportation agent at the point of shipment, his affidavit to the effect that he has not violated any of the provisions of the Alaska game law or the regulations thereunder; that the big-game animal or game bird or part thereof which he desires to ship has not been purchased or sold and is not being shipped for the purpose of being sold, and that he lawfully killed the animal or game bird and is the owner of it or the part thereof which he desires to ship; and if the shipment consists of a caribou or mountain sheep or part thereof, the statement must show in the case of caribou whether the animal was killed on the Alaska Peninsula, and in the case of mountain sheep whether the animal was killed on the Kenai Peninsula, or elsewhere in the Territory. Such affidavit or affidavits shall accompany the express or freight bills of lading to the port of clearance, there to be taken up by the collector of the port; collectors of customs at ports of clearance shall promptly transmit such affidavits to the Commission.

A resident may export by express, freight, or parcel post for mounting and return to the Territory within 1 year, but not for sale, any game animals, birds, or parts thereof that have been legally acquired by him upon first procuring a resident export license, which license shall accompany the bill of lading when shipment is made by freight or express, and if made by parcel post, the license shall be attached securely to the outside of the package in a conspicuous place. On the return of the trophies to the consignor by express or freight, the export license shall accompany the bill of lading, but if returned by parcel post, the export license shall be attached securely to the outside of the package in a conspicuous place, and the collector of customs at the port of entry, or the postmaster through whose office it is received, shall detach the export license, note thereon the contents of the shipment, and promptly return the license to the Commission.

In the discretion of the Commission permits may be issued to residents of the Territory for the export of legally acquired game animals, birds, or parts thereof, for purposes other than sale. Such permits may be obtained from any member of the Commission, game warden, or collector of customs. Such animals, birds, or parts thereof, may be shipped by express or freight, and the permit shall accompany the bill of lading covering any such shipment to the port of clearance from the Territory, where such permit shall be taken up by the collector of customs and returned to the Commission.

REGULATION 4. POSSESSION AND TRANSPORTATION OF FUR-BEARING ANIMALS

Live land fur-bearing animals legally taken during an open season may be retained after the close of said open season or sold for propagation within the Territory: *Provided*, That persons possessing such animals shall report their possession to the Alaska Game Commission at Juneau and apply for a permit to possess such animals pursuant to regulation 22 hereof within 30 days after the close of said open season.

The skins of land fur-bearing animals for which an open season is provided, or parts thereof, when legally acquired, may be possessed and transported by any person at any time, except as hereinafter provided, but no person who is engaged in fur farming or is a fur dealer or an agent of a fur dealer shall possess or transport any fur-bearing animal or part thereof, unless, at the time of such possession or transportation he is in possession of a valid license issued to him pursuant to the provisions of the Alaska game law, and no person shall possess or transport any illegal skin at any time. In case shipment is made by express or freight, the shipper shall first deliver to the transportation agent at the point shipment is accepted, or if by parcel post to the postmaster at the point of mailing, a statement correctly showing the number and kinds of skins in each shipment and stating further that no illegal skin is contained therein; and further, if shipment contains beaver skins, the statement shall show serial number of the Commission's seals attached to each skin. Transportation agents and postmasters shall not knowingly accept shipments containing furs without such statement. If shipment is made by express or freight, such statement shall accompany it to the port of clearance, there to be taken up by the collector of the port, or, if by parcel post, by the postmaster at the office where mailed. In case skins or furs are shipped out of the Territory by means other than express, freight, or parcel post, the person transporting them shall deliver such statement to the collector of customs at the port of clearance. Collectors and postmasters shall promptly transmit such statements to the Commission.

Skins of beavers imported into the Territory shall be sealed with a seal prescribed by the Commission within 30 days after such importation, as hereinafter provided.

Persons importing beaver skins and desiring to have them sealed shall within 30 days present them to a member of the Commission, to a game warden, or to any other officer authorized by the Commission to seal skins, together with such proof of entry or affidavit or affidavits as the Commission or any such officer may require.

Persons having taken the skins of beavers shall, within 90 days after the close of the open season during which they were legally taken, personally present them to a member of the Commission, to a game warden, or to any other officer authorized by the Commission to seal or tag skins, together with an affidavit of lawful taking completed on a form adopted and furnished by the Commission and such other affidavit or affidavits as may be required by any officer authorized to seal such skins: *Provided*, That persons residing in remote localities and finding it impracticable to present such skins to an officer authorized to seal them as hereinbefore prescribed, may present such skins, together with affidavit of lawful taking completed on a form adopted and furnished by the Commission as hereinbefore prescribed, to any individual authorized by the Commission to attach thereto a tag bearing an authorization permitting such skins, if legally taken, to be sold and transported within the Territory, subject to examination and authentication by a representative of the Commission; and such skins so tagged shall be presented by a lawful possessor to a warden or member of the Commission, or to any other officer authorized by the Commission to seal skins, for sealing within 90 days after the close of the open season during which they were taken: *Provided*, That such commissioner, warden, or officer may require further affidavit or affidavits of the person taking the skins at any time before they are accepted and sealed as legal skins. A person having legally taken the skins of beavers during the open seasons may not sell, trade, or otherwise dispose of such skins until they have been sealed or tagged as hereinbefore provided, and no person may purchase or otherwise procure any such untagged or unsealed skins.

Skins of beavers, unless sealed as prescribed by this regulation, may not be possessed or transported by any person after the expiration of the time within which they are required by this regulation to be sealed.

No person who is not a bona-fide fur dealer shall possess at any time, unless sealed, numbers of skins of beavers in excess of the seasonal bag limits prescribed by regulation.

REGULATION 5. MARKING SHIPMENTS OF GAME ANIMALS, GAME BIRDS, LAND FUR-BEARING ANIMALS, OR PARTS THEREOF

Each package in which game animals, game birds, land fur-bearing animals, or parts thereof are transported, shall have clearly and conspicuously marked on the outside thereof the names and addresses of the consignor and consignee and an accurate statement of the number of each kind of game animals, game birds, land fur-bearing animals, or parts thereof, contained therein; and if the package contains skins of beavers, the serial numbers of the Commission's seals attached thereto shall also be similarly marked on the package.

REGULATION 6. SALE OF GAME ANIMALS AND GAME BIRDS IN CERTAIN PLACES, OF FUR-BEARING ANIMALS AND PARTS THEREOF, AND OF FEATHERS OF DUCKS AND GEESE

Nothing in this regulation shall be construed to permit any person to sell any game animal, game bird, or part thereof, except as hereinafter provided.

Except as hereinafter provided in this regulation and in regulation 7, in that portion of Alaska south of the summit of the Alaskan Range and Ahklun Mountains a person who has legally killed caribou may sell the meat thereof, but no person to whom such meat is sold shall sell it otherwise than in cooked form and then only at roadhouses having a permit prescribed by the Secretary.

Except as hereinafter provided in this regulation and in regulation 7, in that portion of Alaska north of the Alaska Range and Ahklun Mountains, a person who has legally killed caribou, moose, and nonmigratory game birds may sell the meat thereof, but no person to whom such meat is sold shall resell it otherwise than in cooked form: *Provided*, That a permit, issued at the discretion of the Commission, shall be required for all restaurants, roadhouses, or public or other eating houses within such area, such permit authorizing the purchase and serving of such meats as provided herein only during the regular open season for such game animals and birds, except that at the discretion of the Commission where supplies of domestic meats are not available, such permit may authorize the serving of such meats during closed seasons on such animals and birds.

Nothing in this regulation shall be construed to permit the transportation to, or possession in, any other part of Alaska, of game meats sold under this regulation.

Any person may without a license buy and sell at any time in the Territory the feathers of wild ducks and wild geese, lawfully killed, and feathers of such birds seized and/or condemned by Federal or Territorial authorities, for use in making fishing flies, bed pillows, and mattresses, and for similar commercial purposes, but not for millinery or ornamental purposes; the hides or parts thereof of moose, caribou, deer, and mountain goats, legally taken during the open season; shed antlers of caribou, moose, and deer; and the skins and feathers of eagles, crows, hawks, owls, ravens, and cormorants.

A native-born resident Indian, Eskimo, or half-breed who has not severed his tribal relations by adopting a civilized mode of living or by exercising the right of franchise, and a hunter or trapper, may sell without a license the skins of fur-bearing animals which he has lawfully taken.

A person not engaged or employed in the business of trading in such skins may buy without a license the skins of fur-bearing animals for his own use, but he may not sell the skins so purchased.

Any other person who is in possession of a valid license issued pursuant to the provisions of the Alaska game law authorizing him so to do may buy and sell the skins of fur-bearing animals at any time, but each such person shall have his license with him when buying or selling skins, except that a person buying or selling skins at an established place shall have his license posted conspicuously on the premises, and each such licensee shall produce his license for inspection by any game warden or other person requesting to see it.

REGULATION 7. SERVING GAME IN MESS HOUSES, BOATS, AND DINING CARS

Nothing in these regulations shall be construed to permit any person to sell any game animal, game bird, or part thereof, to the owner, master, operator, or employee of any coastal or river steamer, commercial power or sail boat, pile driver, barge, scow, boat under charter, cannery, or mine (where five or more men are employed), or for any such owner, master, operator, or employee to buy any game animal, game bird, or part thereof; or to take or to possess for serving or to serve any game animal, game bird, or part thereof, in any dining car, any mess house operated by a railroad, a mine (where five or more men are employed), a contractor, or the owner of a cannery, or in any other place maintained for the serving of food regularly to employees of such railroad, mine, contractor, or cannery; or to serve any game animal, game bird, or part thereof, to an employee of any coastal or river steamer, commercial power or sailboat, pile driver, barge, scow, boat under charter, cannery, or mine (where five or more men are employed); nor shall the regulations be construed to permit any contractor or person operating a railroad, mine (where five or more men are employed), cannery, coastal or river steamer, or other commercial power or sailboat, pile driver, barge, scow, boat under charter, or any employee of any such contractor, operator, or person to possess any game animal game bird, or part thereof, in a dining car, a mess house, or the galley or dining room of any such boat, pile driver, barge, scow, or mine (where five or more men are employed).

REGULATION 8. TAKING OF GAME BY PROSPECTORS, TRAVELERS, AND CERTAIN INDIANS WHEN IN NEED OF FOOD

An Indian, Eskimo, or half-breed who has not severed his tribal relations by adopting a civilized mode of living or by exercising the right of franchise, and an explorer, prospector, or traveler may take animals or birds in any part of the Territory at any time for food when in absolute need of food and other food is not available, but he shall not ship or sell any animal, or bird, or part thereof, so taken.

REGULATION 9. METHODS OF TAKING GAME ANIMALS AND GAME BIRDS

Except in areas enumerated and defined as closed to hunting under regulation 14 and as otherwise specifically permitted by regulations 22 and 23, game animals and game birds may be taken during the open season in the numbers mentioned in regulations 11 and 13 with a bow and arrow, spear, pistol, rifle, or gun not larger than no. 10 gage, by the use of decoys, and from a blind or floating device (other than an airplane, steam or power launch, or any boat other than one propelled by paddle, oars, or pole); but no person shall take any game animal or game bird from a motor vehicle, airplane, steam or power launch, or any boat other than one propelled by paddle, oars, or pole, nor shall any person take any such game animal or game bird with the aid or use of a set gun of any description, a machine or sub-machine gun, a pit, deadfall, fire, jack light, searchlight, or other artificial light, or any game animal with the aid or use of a dog, or while swimming, except, that no migratory game birds may be taken with or by means of any automatic-loading or hand-operated repeating shotgun capable of holding more than three shells: *Provided*, That nothing in this regulation shall be construed to permit the hunting of migratory game birds contrary to the Migratory Bird Treaty Act regulations applicable to Alaska.

REGULATION 10. OPEN SEASONS ON CERTAIN GAME ANIMALS

Except in areas enumerated and defined as closed to hunting under regulation 14, game animals may be taken during the following open seasons:

Bull moose (except yearlings and calves).—September 1 to December 31.

Caribou—
- North of the Yukon River, no close season.
- South of the Yukon River, August 20 to December 31.

Male deer having horns not less than 3 inches in length above the top of the skull.—East of longitude 138° in southeastern Alaska, August 20 to November 15.

West of longitude 138° in only the following described area under a special hunting permit prescribed by the Secretary: The drainage to Prince William Sound north of the center of the C. R. & N. W. Railway and west of Mountain Slough, including the islands of said sound, except Hawkins and Knight Islands, September 20 to September 30.

Mountain sheep (except females and lambs).—August 20 to December 31.

Mountain goat (except kids).—August 20 to December 31.

Bear (large brown and grizzly).—For a resident: September 1 to June 20 in the following described areas:

Alaska Peninsula south of the Kvichak River and Iliamna Lake;

The drainage to Cook Inlet from the west northward to the south banks of the Happy and Skwentna Rivers;

That portion of the drainage to Cook Inlet south and west of the Yentna River to its confluence with the Susitna River;

That area east and south of the left banks of the Susitna River and Willow Creek and of a line from the head of Willow Creek to the mouth of the Knik River;

That portion of the mainland draining to Cook Inlet, Prince William Sound, and the Gulf of Alaska south to Knik Arm, Knik River, Knik Glacier, and the divide of the Chugach Mountains from the head of said glacier running generally easterly through Thompson Pass to the head of Childs Glacier; thence down the center line of said glacier to the center of the Copper River and Northwestern Railway bridge across Copper River at mile 49; thence up the center line of Miles Glacier to the summit of the Chugach Mountains; thence along the summit of said mountains to Mount St. Elias;

All of southeastern Alaska east of longitude 141°;

The islands of the Kodiak-Afognak group (except Afognak Island), Montague, Hinchinbrook, Hawkins, Yacobi, Chichagof, Baranof, and Admiralty: *Provided*, That a resident may kill a large brown or grizzly bear at any time or place in the foregoing described areas when such animal is about to attack or molest persons or property.

In the remainder of the Territory, no close season.

For a nonresident: Throughout the Territory, September 1 to June 20.

REGULATION 11. BAG LIMITS ON CERTAIN GAME ANIMALS

A person may take during the open season prescribed therefor in regulation 10 and have in possession at any one time not to exceed the following numbers of game animals:

Moose.—One.

Caribou—
- All of Alaska, except Alaska Peninsula, resident, five; nonresident, two.
- Alaska Peninsula, south and west of the Kvichak River, Iliamna Lake, and the old portage from Kamishak Bay to Kakhonak Bay, by a resident, two; by a nonresident, one.

Deer—
- East of longitude 138°, three.
- West of longitude 138° (under special hunting permit prescribed by the Secretary as set forth in regulation 10), one.

Mountain sheep—	By a nonresident on the Kenai Peninsula south of Turnagain Arm, Portage Creek, and a line from its head to the head of Passage Canal, one; in the remainder of the Territory, two.
	By a resident south of the Arctic Circle, two, except on the Kenai Peninsula south of Turnagain Arm, Portage Creek, and a line from its head to the head of Passage Canal, wherein the limit shall be one; north of the Circle, three.
Mountain goat—	Two.
Bear (large brown and grizzly)—	By a nonresident throughout the Territory (see exception), two in the aggregate.
	By a resident in those areas described in regulation 10 (see exception), the limit shall be two in the aggregate; in the remainder of the Territory, no limit.
	Exception: On Admiralty Island the limit shall be one for residents and nonresidents.

The Secretary upon proper showing by the applicant will grant permission to persons located in that area described under regulation 6, where the sale and serving of game is permitted, to have in possession at one time an excess of the numbers of game animals permitted under this regulation. Application for such permission should be addressed to the Alaska Game Commission, Juneau, Alaska.

REGULATION 12. OPEN SEASONS ON CERTAIN GAME BIRDS

Except in areas enumerated and defined as closed to hunting under regulation 14, game birds (except swan, cranes, and other migartory and nonmigratory game birds for which no open season is provided) may be taken during the following open seasons:

Grouse and ptarmigan.—September 1 to February 28.

Waterfowl (except those species not permitted to be taken) *and Wilson's snipe, or jacksnipe.*—The season established for the Territory by regulations under the Migratory Bird Treaty Act of July 3, 1918.

REGULATION 13. DAILY BAG AND MAXIMUM POSSESSION LIMITS ON CERTAIN GAME BIRDS

A person may take in any one day during the open seasons prescribed therefor in regulation 12 not to exceed the following numbers of game birds, which numbers shall include any game birds taken by any other person who for hire accompanies or assists him in taking them:

Grouse and ptarmigan.—Grouse, 15 in the aggregate of all kinds; ptarmigan, 25 in the aggregate of all kinds; but not to exceed 25 in the aggregate of all kinds of grouse and ptarmigan.

Waterfowl (except those species not permitted to be taken) *and Wilson's snipe or jacksnipe.*—The number established for the Territory by regulations under the Migratory Bird Treaty Act of July 3, 1918.

A person may possess from the beginning of the open season to 10 days after the close of the open season migratory game birds legally taken, but not to exceed a greater number of such birds than is permitted to be taken and possessed under the Migratory Bird Treaty Act regulations.

REGULATION 14. CONTINUOUS CLOSE SEASON IN CERTAIN AREAS

Nothing in these regulations shall be construed to permit the taking at any time of any game animal, game bird, or fur-bearing animal—

In Mount McKinley National Park,
In Katmai National Monument,
In Glacier Bay National Monument,
On Kruzof and Partofshikof Islands,
In Eyak Lake closed area:

Including the drainage area of Eyak Lake and Power Creek, north and east of Cordova, more particularly described as follows: Beginning on the north boundary line of the city limits of the town of Cordova, Alaska, at a point where said boundary line is crossed by the divide between Eyak Lake and Power Creek and Orca Inlet and Orca Bay; thence in a general northeasterly direction along said divide to the intersection with parallel 60°40' north; thence east along said parallel to the intersection with the divide between the watershed of Power Creek and Eyak Lake and the watershed of Ibek Creek; thence in a general southwesterly direction along said divide to the headwaters of Allen Creek; thence southwesterly along the course of Allen Creek to its confluence with Eyak Lake; thence southerly along the shore of Eyak Lake to the northerly side line of the Copper River & Northwestern Railway right of way; thence in a general westerly direction along the northerly side line of said railway right of way to the intersection with the east boundary line of the city limits of the town of Cordova; thence north along said east boundary of Cordova to the northeast corner of the boundary line of said town; thence west along the northern boundary line of said town to the point of beginning; containing approximately 22,000 acres;

or, except under permit or regulation by the Secretary of Agriculture, on any bird reservation,

On any island occupied under lease or permit for fur-farming purposes except by the occupant thereof,

or in any of the following-described areas along the line of the Alaska Railroad:

1. One-half mile in width situated to the eastward of the center line of the Alaska Railroad between mileposts 40.5 and 41.5.
2. One-half mile in width situated to the westward of the center line of the Alaska Railroad between mileposts 176 and 177.
3. One-half mile in width situated to the westward of the center line of the Alaska Railroad between mileposts 181.5 and 182.5.
4. One-half mile in width situated to the westward of the center line of the Alaska Railroad between mileposts 190 and 191.
5. One-half mile in width situated to the westward of the center line of the Alaska Railroad between mileposts 195.5 and 196.5.
6. One mile in width situated one-half mile to the eastward and one-half mile to the westward of the center line of the Alaska Railroad between mileposts 234.5 and 236.5.
7. One mile in width situated one-half mile to the westward and one-half mile to the eastward of the center line of the Alaska Railroad between mileposts 242 and 243.
8. One-half mile in width situated to the eastward of the center line of the Alaska Railroad between mileposts 250 and 252.
9. Beginning at a point 6 miles north of the Curry Hotel, thence east 1 mile, thence south 7 miles, thence west 2 miles, thence north 7 miles, thence east 1 mile to the place of beginning.

One mile in width on each side of the center line of the Alaska Railroad beginning at milepost 247 and extending to milepost 254.

10. One mile in width situated one-half mile to the northward and one-half mile to the southward of the center line of the Alaska Railroad between mileposts 40 and 52.
11. One thousand feet to the eastward and 1,000 feet to the westward of the center line of the Alaska Railroad between mileposts 282 and 293.

Nothing in these regulations shall be construed to permit the taking at any time except under permit of the Secretary of Agriculture of any—

Game animal or game bird in Keystone Canyon closed area, including one-half mile on each side of and paralleling the Richardson Highway from milepost 13 (from Valdez) to milepost 20 (from Valdez);

Game animal or game bird in the Big Delta closed area described as follows: Beginning at a point on the south bank of the Tanana River 1 mile east of the ferry at Big Delta post office, thence south parallel to the Richardson Highway to a point 1 mile east of and opposite milepost 269 (from Valdez), thence westerly across and to a point on the west bank of the Big Delta River due west of aforesaid milepost 269 (from Valdez), thence north along the west bank of the Big Delta River to its junction with the south bank of the Tanana River, thence easterly along the south bank of the Tanana River to the place of beginning;

Caribou in Steese Highway closed areas, including one-half mile on either side of and paralleling the center line of the Steese Highway from milepost 85 to milepost 88 (Twelve Mile Summit); and from milepost 106 to milepost 111 (Eagle Summit);

Beaver or muskrat on the Kodiak-Afognak Islands group;

Mountain goat on Baranof or Chicagof Islands;

Deer in the Yakutat Bay Region and in the Kodiak-Afognak Islands group;

Buffalo (bison) in any part of Alaska;

Musk ox in any part of Alaska;

Elk in any part of Alaska;

Large brown or grizzly bear in that area of land and water embracing the Glacier Bay National Monument, a part of the Tongass National Forest, and other lands included within the following described boundary: Beginning at the summit of Mount Fairweather, in approximate latitude 58°54′ N. and approximate longitude 137°31′ W., which point is identical with angle point no. 164 on the international boundary between Alaska and British Columbia and common to the most westerly point of the Glacier Bay National Monument, as established February 26, 1925; thence southwesterly, to Cape Fairweather on the Pacific Ocean, at the northwest corner of the Tongass National Forest, as established June 10, 1925; thence southeasterly, along the Pacific coast, including all islands along the coast, to the center channel of Cross Sound at the point of confluence with the Pacific Ocean; thence northeasterly, easterly, and southeasterly through the center channel of Cross Sound, North Inian Pass, North Passage, and Icy Passage to the center channel of Excursion Inlet at the point of confluence with Icy Passage; thence easterly to a point on the east shore of Excursion Inlet at the foot of spur ridge, which point is approximately 3 miles northeast of the Porpoise Island; thence northeasterly, following the summit of the spur ridge to the summit of the watershed between Excursion Inlet and Lynn Canal; thence northerly, northwesterly, and westerly, along the summit of the watershed between Excursion Inlet and Lynn Canal to the intersection of the east boundary of the Glacier Bay National Monument and the watershed divide of Excursion Inlet, Endicott River, and Glacier Bay, which point is in approximate latitude 58°42′ N. and approximate longitude 135°41′ W.; thence northwesterly, along the east and north boundary of the Glacier Bay National Monument, as now established, to the most northerly corner of said Glacier Bay National Monument, at a point on the international boundary between Alaska and British Columbia; thence southwesterly, along the international boundary between Alaska and British Columbia; through angle points nos. 157, 158, 159, 160, 161, 162, and 163 to the summit of Mount Fairweather, the point of beginning; excepting and reserving from the above-described area, all surveyed lands within fractional Tps. 39 and 40 S., Rs. 57, 58, and 59 E., Copper River Meridian;

Large brown or grizzly bear on Afognak Island;

Moose on the Alaska Peninsula south and west of Kvichak River, Iliamna Lake, and the old portage from Kamishak Bay to Kakhonak Bay;

Moose on the Kenai Peninsula in the area described as follows: Beginning at the true point for the meander corner of fractional secs. 23 and 26, T. 6 N., R. 12 W., on the east shore of Cook Inlet, at low water; the approximate geographic position is in latitude 60°34′17″ N. and longitude 151°19′36″ W. from Greenwich; thence from said initial point easterly, between secs. 23 and 26 and secs. 24 and 25 to the corner of secs. 19, 24, 25, and 30, T. 6 N., Rs. 11 and 12 W.; thence easterly, in T. 6 N., R. 11 W., along the north boundary of secs. 30, 29, and 28, to the NE. corner of sec. 28; thence southerly, along the east boundary of sec. 28 and sec. 33, to the corner of secs. 3, 4, 33, and 34, Tps. 5 and 6 N., R. 11 W.; thence easterly, along the north boundary of secs. 3, 2, and 1, to the NE. corner of T. 5 N., R. 11 W.; thence southerly, along the east boundary of sec. 1 to the meander corner of fractional secs. 1 and 6, on the right bank of the Kenai River; thence up the right bank of the Kenai River, at low water, to the outlet and westerly end of Skilak Lake; thence easterly, along and following the northerly shore of Skilak Lake, at low water, to a point on the northeasterly shore of the said lake at the mouth of the Kenai River; thence northeasterly, up the right bank of the Kenai River, at low water, to a point opposite the mouth of Russian River; this point falls on the west boundary of the Chugach National Forest as defined by Proclamation No. 1307, dated August 2, 1915; thence due north, following the west boundary of the Chugach National Forest as described by Proclamation No. 1741, dated May 29, 1925, to its intersection with Thurman Creek; thence following down the west bank of said creek and the Chickaloon River to Chickaloon Bay on Turnagain Arm of Cook Inlet, at low water; thence westerly and northwesterly, along the shore of Chickaloon Bay, at low water, to Point Possession; thence southwesterly, along the southeast shore of Cook Inlet, at low water, to the true point for the meander corner of fractional secs. 23 and 26, T. 6 N., R. 12 W., the place of beginning;

Mountain sheep or mountain goat in the eastern part of the Kenai Peninsula east of the center line of the Alaska Railroad;

Snowshoe hare on islands of the Kodiak-Afognak Islands group;

Raccoon in any part of Alaska;

Beaver on Baranof and Chichagof Islands or in the drainage to the Mendenhall Valley east of the main Glacier Highway;

Muskrat in the Golovin Bay drainage;

Black bear in the drainage to Anan Creek;

Large brown or grizzly bear in the following areas on Admiralty Island:

Thayer Mountain area.—Beginning at the foot of the waterfall at the mouth of Hasselborg River on Salt Lake, head of Mitchell Bay; thence along the easterly bank of the Hasselborg River to the outlet of Hasselborg Lake; thence along the west shore of said lake to the outlet of the creek flowing into the head of the lake; thence upstream along the east bank of said creek to the trail crossing; thence in a southwesterly direction along the trail to the head of Thayer Lake; thence along the easterly shore of said lake to the extreme southern end of the lake; thence southeasterly approximately 2 miles in a straight line to the west end of Salt Lake at the head of Mitchell Bay; thence along the line of mean high tide of Salt Lake to the foot of the waterfall on Hasselborg River, the place of beginning; containing approximately 60 square miles;

Pack Creek area.—The entire watershed of Pack Creek, which empties into Seymour Canal near the north side of the entrance to Windfall Harbor; containing approximately 21 square miles.

Mountain sheep or mountain goat in the Girdwood closed area described as follows: Beginning at the center of the bridge of the Crow Creek Road over California Creek, at approximately latitude 60°58′ north and longitude 149°8′ west of Greenwich, as shown on the preliminary topographic map of the Girdwood District, Alaska, 1931, published by the United States Geological Survey; thence on a course bearing due east continuing in a stright line to the west bank of Glacier Creek; thence northeasterly following

the west and north bank of said creek and its largest northern tributary to its head; thence along the west side of the glacier it drains to the summit of the divide between Glacier Creek and the drainage to the north at approximately latitude 61°2'30" north, longitude 149° west; thence westerly and northerly along said divide around the head of Raven Glacier to a point where said divide intersects the western margin of the most northern glacier in Raven Creek basin; thence following northeasterly and westerly along the western and southern margin of Eagle Glacier to its termination; thence westerly in a straight line to the junction of Camp and Raven Creeks; thence southwesterly along the south bank of Camp Creek to its head, at the divide between Camp Creek and the North Fork Ship Creek; thence northwesterly down the valley of the North Fork Ship Creek to a small lake in this valley; thence westerly along the south shore of said lake and continuing westerly along the south bank of North Fork Ship Creek to the junction of said creek with its first large tributary from the south, entering it about 1 mile east of Bird Creek Pass; thence southerly along the west bank of said tributary and its most westerly branch to the divide between North Fork Ship Creek and Bird Creek; thence southwesterly in a straight line to the junction of Bird Creek with its first large tributary from the head entering it from the south; thence southeasterly along the northern and eastern side of the stream bed of said tributary to the summit of the divide between the said tributary and the drainage of California Creek; thence southerly along the divide between California Creek and Bird Creek to a summit marked 4322 on the said preliminary topographic map of Girdwood District, Alaska, said point being in approximately latitude 60°59' north, longitude 149°11'15" west; thence southeasterly in a straight line to the point of beginning; containing approximately 77 square miles.

REGULATION 15. CERTAIN NONGAME BIRDS UNPROTECTED

A person may take, possess, and transport crows, hawks, owls, eagles, ravens, magpies, and cormorants, and their nests and eggs, at any time, in any number, and by any means, except they may not be taken by the use of poison.

REGULATION 16. TAKING OF CERTAIN NONGAME BIRDS BY ESKIMOS AND INDIANS FOR FOOD AND CLOTHING

Eskimos and Indians may take, possess, and transport at any time, auks, auklets, guillemots, murres, and puffins and their eggs for food, and their skins for clothing, for the use of themselves and their immediate families.

REGULATION 17. LAND FUR-BEARING ANIMAL DISTRICTS

For the purpose of these regulations, with respect to land fur-bearing animals, the Territory is hereby divided into eight districts, as follows:

FUR DISTRICT 1.—All of southeastern Alaska from Dixon Entrance to Cape Fairweather and along longitude 138° to the international boundary.

FUR DISTRICT 2.—That portion of southern Alaska draining to the Gulf of Alaska and Cook Inlet, beginning with the western boundary line of fur district 1 and following longitude 138° from Cape Fairweather to the international boundary and along this boundary to Mount St. Elias; thence following the summit of the Chugach Range to the head of Miles Glacier; thence down the center line of said glacier to the center of the Copper River & Northwestern Railway bridge across the Copper River at mile 49; thence up the center line of Childs Glacier to its summit; thence along the divide through Marshall Pass and Thompson Pass; thence along the divide to Tahneta Pass; thence along the divide separating the waters of the Matanuska River from the Nelchina River and the Talkeetna River from the Oshetna River; thence along the divide separating the waters of the Oshetna River from Kosina Creek to and across the Susitna River at a point 4 miles northwest of the mouth of Goose Creek; thence along the divide separating the waters flowing northwest into the Susitna River from those flowing southerly into the Susitna River; thence following said divide separating the waters flowing north into the Nenana River from those flowing southerly into the Susitna and Chulitna Rivers and across Broad Pass and the Alaska Railroad at mile 308; thence along the divide separating the waters flowing south into the Chulitna River from those flowing north into Cantwell Creek and the Nenana River to the summit of the Alaska Range; thence along said summit through Rainy Pass to Merrill Pass; thence along the summit of the Chigmit Mountains, separating the waters flowing easterly into Cook Inlet from those flowing westerly into the Kuskokwim River and Bristol Bay, to its intersection with the old portage from Kamishak Bay to Kakhonak Bay on Iliamna Lake; thence along said portage to Kamishak Bay.

FUR DISTRICT 3.—Consisting of the Aleutian Islands, Unimak Island, Amak Island, all the islands lying south of the Alaska Peninsula, the Kodiak-Afognak Islands group, the Barren Islands, Augustine Island, and the Alaska Peninsula from False Pass to the mouth of Reindeer Creek, thence following said creek and a line to the center of Aniachak Crater, and including that portion of said peninsula consisting of the drainage to the Pacific Ocean south of a line following the divide from the center of Aniachak Crater to the old portage from Kamishak Bay to Kakhonak Bay; thence along said portage on the boundary of fur district 2 to Kamishak Bay.

FUR DISTRICT 4.—All the drainage to Bristol Bay, bounded on the south by the northern boundary of fur district 3, on the east by the western boundary of fur district 2, and on the north by a line beginning at Cape Newenham and extending along the summit of the divide separating the waters flowing northerly into Kuskokwim Bay and Kuskokwim River from those flowing southerly into Bristol Bay, to its intersection with the western boundary of fur district 2 at a point approximately 22 miles south of Merrill Pass.

FUR DISTRICT 5.—That portion of western Alaska draining to Kuskokwim Bay, Bering Sea, Norton Sound, and Kotzebue Sound, bounded on the east by a line beginning at Cape Newenham and extending along the divide separating the waters flowing into Kuskokwim Bay and Kuskokwim River from those flowing into Bristol Bay and the Tikchik Lakes; thence along the divide separating the waters flowing into Tulusak River and Whitefish Lake from those flowing into the Aniak River and Swift Creek; thence to a point on the Kuskokwim River opposite the mouth of the first stream on the north bank above Ohagamut; thence across the Kuskokwim River and following the center of said first north bank stream above Ohagamut to its head; thence along the divide separating the waters of Paimute Portage flowing into Big Lake from those flowing into the Yukon River; thence to a point on the Yukon River 15 miles below Paimute Village; thence following down the south bank of the Yukon River to a point 5 miles below Dogfish Village; thence across the Yukon River to Mount Chiniklik; thence along the divide separating the waters flowing into the Stuyahok River from those flowing into the Kuyukutuk River; thence continuing along said divide separating the waters flowing easterly into the Yukon River from those flowing westerly into Norton Sound; thence continuing along said divide separating the waters flowing into the Koyukuk River from those flowing into Kotzebue Sound to the summit of the divide separating those flowing into the Colville River from those flowing into the Noatak River; thence westerly along the divide separating the waters flowing north into the Arctic Ocean from those flowing south into the Noatak and Kukpuk Rivers to the coast at Cape Lisburne.

FUR DISTRICT 6.—All the watershed of the Tanana River, the upper Copper River, part of the lower Yukon River, and the upper Kuskokwim River, bounded on the east by the international boundary, on the south by the northern boundaries of fur districts 2 and 4, on the west by the eastern boundary of fur district 5, and on the north by a line beginning at International Boundary Monument No. 146 and following the divide separating the waters of the north fork of the

Ladue River from those of the Ladue River; thence along the divide separating the waters flowing northerly into the Yukon River from those flowing southerly into the Tanana River, through Far Mountain, Twelve Mile Summit, and Wickersham Dome; thence along the divide separating the waters flowing easterly into Beaver Creek from those flowing westerly into Hess Creek; thence along the divide separating the waters flowing southwesterly into Hess Creek from those flowing northerly into the Yukon River; thence along the divide separating the waters flowing southerly into Waldron Creek from those flowing northerly into the Yukon River, to the site of old Fort Hamlin; thence across the Yukon River to the divide separating the waters flowing northerly into the Dall River from those flowing southerly into the Ray River; thence along the divide separating the waters flowing northerly into the Kanuti River from those flowing southerly into the Yukon River; thence along the divide separating the waters flowing westerly into the Koyukuk River from those flowing southerly into the Melozitna River; thence along the divide separating those waters flowing into the Koyukuk River above the upper end of Treat Island from those entering below said point, to the Koyukuk River; thence across the Koyukuk River at the upper end of Treat Island and northwesterly along the divide separating the waters flowing easterly into the Hogatza River and Koyukuk River from those flowing southerly into the Koyukuk River, to Cone Mountain; thence along the divide separating the waters flowing easterly into the Hogatza River from those flowing westerly into the Dakli River, to the intersection with the eastern boundary of fur district 5.

FUR DISTRICT 7.—All the drainage to the upper Koyukuk and upper Yukon Rivers bounded on the east by the international boundary, on the north by the summit of the Brooks Range, on the west by the eastern boundary of fur district 5, and on the south by the northern boundary of fur district 6.

FUR DISTRICT 8.—The Arctic coast of Alaska, consisting of all the drainage to the Arctic Ocean north of the northern boundaries of fur districts 5 and 7.

REGULATION 18. METHODS OF TAKING LAND FUR-BEARING ANIMALS AND RECAPTURE OF ESCAPED ANIMALS

Except in areas enumerated and defined as closed to trapping under regulation 14, land fur-bearing animals may be taken during the open season in any number and in any manner, except by the aid or use of a set gun of any description, a shotgun, fire, jack light, pit lamp, searchlight, or other artificial light, by means of a trap or device known as the "klips", or by means of any steel bear trap or any other trap with jaws having a spread exceeding 9 inches, or by means of strychnine, or other poison: *Provided*, That no dogs shall be used to take any land fur-bearing animal (except polar bears in fur district 8; and wolves and coyotes in fur districts 5, 6, 7, and 8), and no protected fur-bearing animal shall be taken from its home, den, or hole by digging, smoking, or the use of chemicals, and no home, house, den, or runway of a beaver or muskrat shall be injured or destroyed.

Beavers may be taken only by shooting with rifle and by the use of steel traps, but such traps shall not be placed within 25 feet of any beaver house or den. No beaver may be taken by or with the aid of a shotgun.

Operators of licensed fur farms from which animals escape from captivity may conduct recapturing operations through the use of legal trapping devices within a period of 30 days after the discovery of escape of the animals. If such operations are conducted during the close season on wild animals of the same species, such operator shall immediately notify the nearest game warden in writing of the numbers and kinds of escaped animals, the kinds of devices being used in recapturing operations, and the locality where such operations are being conducted.

So-called "blackfish traps", commonly used near the Bering Sea coast for the taking of blackfish, shall be properly screened to prevent the capture or killing of land fur-bearing animals.

During the close seasons on land fur-bearing animals in the respective fur districts no person shall set, maintain, or attend traps for wolves, coyotes, or other unprotected animals without first procuring a permit, issuable at the discretion of the Commission, authorizing him to do so. Application for such permit shall be addressed to the Alaska Game Commission, Juneau, Alaska, and shall contain a statement of the nature and extent of the proposed operations of the applicant.

REGULATION 19.—OPEN AND CLOSE SEASON ON LAND FUR-BEARING ANIMALS

Except in areas enumerated and defined as closed to trapping under regulation 14, land fur-bearing animals may be taken in the specified districts and not to exceed the number of beavers set forth for the specified districts during the following open seasons:

FUR DISTRICT 1:

Mink, marten, land otter, weasel (ermine), *fox* (red, cross, and silver), *and lynx*.—December 10 to January 20.

Muskrat.—March 1 to April 30.

Beaver.—No open season.

Black bear.—September 1 to June 20. Bag limit, two: *Provided*, That a resident may kill a black bear at any time or place when such animal is about to attack or molest persons or property.

Wolf, coyote, wolverine, marmot, and ground squirrel (spermophile).—No close season, may be taken by any person at any time in a lawful manner. (See regulations 2 and 18.)

FUR DISTRICT 2:

Mink, marten, land otter, weasel (ermine), *fox* (red, cross, and silver), *and lynx*.—December 1 to February 28.

Muskrat.—April 1 to May 31; except on Kenai Peninsula, where the open season shall be March 1 to April 30.

Beaver.—No open season.

Black bear.—September 1 to June 20. Bag limit, two: *Provided*, that a resident may kill a black bear at any time or place when such animal is about to attack or molest persons or property.

Wolf, coyote, wolverine, marmot, and ground squirrel (spermophile).—No close season, may be taken by any person at any time in a lawful manner. (See regulations 2 and 18.)

FUR DISTRICT 3:

Mink, marten, land otter, weasel (ermine), *fox* (red, cross, silver, white, and blue), *and lynx*.—December 1 to January 31; except that there shall be no open season for mink, land otter, or weasel (ermine) on Unimak Island.

Muskrat.—March 10 to May 10.

Beaver.—No open season.

Wolf, coyote, wolverine, black bear, marmot, and ground squirrel (spermophile).—No close season, may be taken by any person at any time in a lawful manner. (See regulations 2 and 18.)

FUR DISTRICT 4:

Mink, marten, land otter, weasel (ermine), *fox* (red, cross, silver, white, and blue), *and lynx*.—December 1 to February 15.

Muskrat.—March 10 to May 10.

Beaver.—No open season.

Wolf, coyote, wolverine, black bear, marmot, and ground squirrel (spermophile).—No close season, may be taken by any person at any time in a lawful manner. (See regulations 2 and 18.)

FUR DISTRICT 5:

Mink, marten, land otter, weasel (ermine), *fox* (red, cross, and silver), *and lynx*.—November 16 to February 28.

White and blue fox.—North of the Unalakleet River, including St. Lawrence Island, November 16 to March 31; south of the Unalakleet River, November 16 to February 28.

Muskrat.—North of the Unalakleet River, except Golovin Bay drainage, April 1 to June 7; south of the Unalakleet River, April 1 to May 31.

Beaver.—No open season.

Polar bear, wolf, coyote, wolverine, black bear, marmot, and ground squirrel (spermophile).—No close season, may be taken by any person at any time in a lawful manner. (See regulations 2 and 18.)

FUR DISTRICT 6:

Mink, marten, land otter, weasel (ermine), *fox* (red, cross, silver, white, and blue), *and lynx.*—November 16 to February 20.

Muskrat.—April 1 to May 31.

Beaver.—No open season.

Wolf, coyote, wolverine, black bear, marmot, and ground squirrel (spermophile).—No close season, may be taken by any person at any time in a lawful manner. (See regulations 2 and 18.)

FUR DISTRICT 7:

Mink, marten, land otter, weasel (ermine), *fox* (red, cross, silver, white, and blue), *and lynx.*—November 6 to February 20.

Muskrat.—March 1 to May 31.

Beaver.—No open season.

Wolf, coyote, wolverine, black bear, marmot, and ground squirrel (spermophile).—No close season; may be taken by any person at any time in a lawful manner. (See regulations 2 and 18.)

FUR DISTRICT 8:

Mink, marten, land otter, weasel (ermine), *fox* (red, cross, silver, white, and blue), *and lynx.*—December 1 to April 15.

Muskrat.—April 10 to June 10.

Beaver.—No open season.

Polar bear, wolf, coyote, wolverine, black bear, marmot, and ground squirrel (spermophile).—No close season; may be taken by any person at any time in a lawful manner. (See regulations 2 and 18.)

REGULATION 20. FEEDING GAME TO FOXES, FUR-BEARING ANIMALS, AND DOGS

Nothing in these regulations shall be construed to permit any person to feed to a fox or other fur-bearing animal held in captivity, or to a dog boarded for pay, or use for crab bait, any part of a game animal or bird other than an eagle, a raven, crow, hawk, owl, or cormorant, but waste parts, such as hides, viscera, and bones, may be fed to such animals, except that no person shall feed any mountain sheep or part thereof to any dog.

REGULATION 21. DUTIES OF FUR FARMERS AND FUR TRADERS

Each licensed fur farmer or fur dealer, including stores operated by missions or otherwise for native Indians, Eskimos, or half-breeds, shall comply with the provisions of all Territorial laws relating to fur farmers and fur dealers, and, at all reasonable hours, shall allow any member of the commission, any game warden, or any authorized employee of the United States Department of Agriculture to enter and inspect the premises where operations are being carried on under these regulations, and to inspect the books and records relating thereto.

REGULATION 22. PERMITS TO TAKE SPECIMENS FOR SCIENTIFIC, PROPAGATION, AND EXHIBITION PURPOSES

The Secretary may issue a permit to a duly accredited representative of an educational or scientific institution, public museum or park, governmental department of the United States, or a State engaged in the scientific study of animals and birds, or a person known to be making a special animal or bird investigation, authorizing the holder to collect, possess, and transport wild animals and wild birds and the nests or eggs of birds for scientific purposes, and may issue a permit to any person to take, possess, and transport animals or birds for propagation or exhibition, but no permit to take fur-bearing animals for propagation shall be valid unless countersigned by the executive officer before issuance, and no permit shall authorize the collection, possession, purchase, or sale for propagation of migratory birds other than ducks and geese. Such permits shall be carried on the person of the permittee when he is collecting animals, birds, or nests or eggs thereunder, and shall be exhibited to any warden or other person requesting to see it.

Applications for permits to take land fur-bearing animals for propagation should be addressed to the Alaska Game Commission, Juneau, Alaska, and must state the kinds and numbers of animals the applicant desires to capture, and where the animals are to be kept. Applications for all other permits should be addressed to the Secretary of Agriculture, Washington, D. C., and must state the name and address of applicant, his age, whether he is a taxidermist, name and address of the public museum or park, if any, which he represents, region where he desires to collect, number of each species of animal or bird or nests or eggs he desires to collect, probable port and date of shipment, and the purpose for which they are intended.

The permit may limit the number of species of animals, birds, and nests and eggs that may be collected thereunder, and may authorize the permittee to possess, buy, sell, and exchange animals and birds, parts thereof, and nests and eggs for scientific, propagation, or exhibition purposes, and prescribe the manner in which specimens may be taken or may be transported, or it may limit the permittee to one or more of these privileges and prescribe such other restrictions as the Secretary may deem necessary.

Each permit shall expire on December 31 of the year of issue, shall be revocable at the discretion of the Secretary, and shall not be transferable. A permit duly revoked by the Secretary shall be surrendered to him by the person to whom issued on demand of any employee of the United States Department of Agriculture or of the commission authorized by the Secretary to make such demand.

The holder of a permit to take land fur-bearing animals for propagation shall on or before the 10th day of January following the expiration of this permit report to the Alaska Game Commission, Juneau, Alaska, the kinds, number, and sex of all animals taken by him under the permit, the disposition made of all animals so captured, and whether any animals were killed or died in the course, or as a result, of the capture operations.

A permittee holding other permits shall report to the Secretary not later than the date of expiration of his permit, the number of animals, birds, and nests and eggs collected, bought, sold, exchanged, or transported during the preceding calendar year.

Permittees shipping animals, birds, or nests, or eggs for scientific, propagation, or exhibition purposes, except as herein mentioned, must, at the time of shipment, forward to the collector of customs at the port of entry a copy of his permit bearing the seal of the United States Department of Agriculture and a list correctly showing the number and kinds of animals, birds, or nests, or eggs contained in the shipment, but if several shipments are to be made under one permit, such copy of the permit and such list should accompany the first consignment, and at the time any subsequent shipment is made such a list should be mailed to the collector of customs at the port of entry. Shipments of specimens to the United States Department of Agriculture or to the Smithsonian Institution or the United States National Museum may be made without being accompanied by a permit, and shipments containing not to exceed 10 live animals and not to exceed 25 live birds in any one consignment may be sent without being accompanied by a permit to the following zoological parks, if shipped directly to one of such parks and not to some agent:

Golden Gate Park, San Francisco.
Lincoln Park, Chicago.
Lincoln Park Zoo, Chicago.
Menagerie of Central Park, New York City.
National Zoological Park, Washington.
New York Zoological Society, New York City.

Zoological Board of Control, St. Louis.
Zoological Garden, Belle Isle, Detroit.
Zoological Society, Philadelphia.

REGULATION 23. PERMITS TO KILL ANIMALS OR BIRDS INJURIOUS TO PROPERTY

When information is furnished the Secretary that any species of bird or animal has become, under extraordinary conditions, seriously injurious to agricultural or other interests in the Territory, an investigation will be made to determine the nature and extent of the injury, and whether the animals or birds alleged to be doing the damage should be killed, and, if so, during what times and by what means. Upon his determination an appropriate order will be issued.

REGULATION 24. REVOCATION OF PRIOR REGULATIONS

All regulations respecting game animals, land fur-bearing animals, game birds, nongame birds, and nests and eggs of birds in Alaska made and published by the Secretary of Agriculture under authority of the Alaska game law prior to the regulations hereby made and published shall be and are hereby revoked with the taking effect of these regulations on July 1, 1936.

In testimony whereof I have hereunto set my hand and caused the official seal of the United States Department of Agriculture to be affixed in the city of Washington, this 9th day of March 1936.

[SEAL] R. G. TUGWELL,
Acting Secretary of Agriculture.

[F. R. Doc. 870—Filed, June 10, 1936; 11:00 a. m.]

FEDERAL COMMUNICATIONS COMMISSION.

Telegraph Division.

ORDER No. 20

The Telegraph Division at its regular meeting on May 26, 1936, adopted the following order:

The Telegraph Division having under consideration the need for providing for secondary and simultaneous transmission of press material by coastal telegraph and point-to-point telegraph stations, has determined that in order to carry out the provisions of the Communications Act of 1934 the following revision of existing Rules and Regulations is necessary.

It is therefore ordered, That Rules 234 and 267 be and the same are hereby amended to read as follows:

234. The term "point-to-point telegraph station" means a fixed station used for radiotelegraph communication. *In addition, a station of this class may be authorized to communicate secondarily and simultaneously with mobile stations for the transmission of press material which is destined primarily to fixed points.*

267. The term "coastal telegraph station" means a coastal station used for radiotelegraph service with maritime mobile stations. *In addition, a station of this class may be authorized to communicate secondarily and simultaneously with fixed points for the transmission of press material which is destined primarily to mobile stations.*

It is further ordered, That said Rules shall be effective at 3 A. M., E. S. T., June 19, 1936.

By the Commission.

[SEAL] JOHN B. REYNOLDS,
Acting Secretary.

[F. R. Doc. 866—Filed, June 10, 1936; 9:31 a. m.]

ORDER No. 21

The Telegraph Division at its regular meeting on May 26, 1936, adopted the following order:

The Division having by its Order No. 20 adopted certain amendments to the existing regulations governing coastal telegraph and point-to-point telegraph stations.

It is ordered That any person or corporation whose interests may be adversely affected by said amendments shall, prior to June 19, 1936, notify the Commission in writing of the nature of his or its interest and desire to be heard; and upon such notification and application shall be accorded a hearing in accordance with the requirements of law; otherwise all such persons or corporations shall be deemed to have consented to the said proposed changes.

By the Commission.

[SEAL] JOHN B. REYNOLDS,
Acting Secretary.

[F. R. Doc. 867—Filed, June 10, 1936; 9:31 a. m.]

AMENDMENT TO RULE 262a, B, b

The Telegraph Division at its regular meeting on May 26, 1936, amended Rule 262a, B, b, to read in part as follows:

MID-TRANSCONTINENTAL CHAIN AND FEEDERS (BLUE)

Available for aeronautical and aircraft stations

2,906	3,072.5	4,947.5	5,652.5
[1] 3,062.5	3,088	4,952.5	5,672.5
	4,937.5	4,967.5	5,692.5

* * * * *

SOUTHERN TRANSCONTINENTAL CHAIN AND FEEDERS (BROWN)

Available for aeronautical and aircraft stations

2,946	3,257.5	3,467.5	5,602.5
3,127.5	3,342.5	3,485	5,612.5
[2] 3,222.5	3,447.5	4,917.5	5,632.5
3,232.5	3,457.5		[3] 5,887.5

[1] For use east of Kingman, Arizona, and west of Pittsburgh, Pennsylvania, only.
[2] Day only—not to be used within 300 miles of Canada.
[3] Subject to the condition that no interference is caused to the international service.

[SEAL] JOHN B. REYNOLDS,
Acting Secretary.

[F. R. Doc. 868—Filed, June 10, 1936; 9:31 a. m.]

RULE 404 MODIFIED

The Telegraph Division, at its regular meeting on June 2, 1936, modified paragraph "a" of Rule 404 to read as follows:

a. Applicant's ability to send and receive in plain language messages on the International Morse Code (five characters to the word) at a minimum speed of 13 words per minute.

JOHN B. REYNOLDS,
Acting Secretary.

[F. R. Doc. 869—Filed, June 10, 1936; 9:31 a. m.]

FEDERAL POWER COMMISSION.

Commissioners: Frank R. McNinch, Chairman; Basil Manly, Vice Chairman; Herbert J. Drane, Claude L. Draper, Clyde L. Seavey.

ORDER SETTING HEARING

[IT-5023-E]

Kansas Gas and Electric Company having filed on January 27, 1936, an application under section 202 (d), Part II of the Federal Power Act, for authority to maintain permanent connections for emergency use only with Empire District Electric Company, near the Kansas-Missouri State line, and with Oklahoma Gas and Electric Company, near the Kansas-Oklahoma State line, without becoming subject to the jurisdiction of the Commission by reason thereof:

It is *ordered:*

That a hearing be held on the above application on Thursday, June 25, 1936, at 10 a. m., in the Commission's hearing room, 417 Machinists Building, 815 Mt. Vernon Place NW., Washington, D. C.

Adopted by the Commission on June 9, 1936.

[SEAL] LEON M. FUQUAY, *Acting Secretary.*

[F. R. Doc. 875—Filed, June 10, 1936; 12:06 p. m.]

Commissioners: Frank R. McNinch, Chairman; Basil Manly, Vice Chairman; Herbert J. Drane; Claude L. Draper; Clyde L. Seavey.

ORDER SETTING HEARING

[IT-5387-S]

Otter Tail Power Company of Fergus Falls, Minnesota, having filed on June 8, 1936, an application under section 204, Part II of the Federal Power Act, for authority to issue 4 per cent first mortgage bonds due 1961, in principal amount of $3,600,000, and 5-year 3 per cent secured notes due 1941, in principal amount of $600,000, for the purpose of refunding at lower interest rates present outstanding bonds of the applicant, and for authority to issue promissory notes bearing 3 per cent interest, maturing on or before January 1, 1937, in an amount of $800,000, for the purpose of redeeming certain bonds of applicant called as of July 1, 1936:

It is *ordered:*

That a hearing be held on the above application on Friday, June 26, 1936, at 10 a. m., in the Commission's hearing room, 416 Machinists Building, 815 Mt. Vernon Place NW., Washington, D. C.

Adopted by the Commission on June 9, 1936.

[SEAL] LEON M. FUQUAY, *Acting Secretary.*

[F. R. Doc. 876—Filed, June 10, 1936; 12:06 p. m.]

FEDERAL REGISTER ACT

[PUBLIC—No. 220—74TH CONGRESS; 49 STAT. 500-503]

AN ACT To provide for the custody of Federal proclamations, orders, regulations, notices, and other documents, and for the prompt and uniform printing and distribution thereof.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the Archivist of the United States, acting through a division established by him in the National Archives Establishment, hereinafter referred to as the "Division", is charged with the custody and, together with the Public Printer, with the prompt and uniform printing and distribution of the documents required or authorized to be published under section 5. There shall be at the head of the Division a director, appointed by the President, who shall act under the general direction of the Archivist of the United States in carrying out the provisions of this Act and the regulations prescribed hereunder, who shall receive a salary, to be fixed by the President, not to exceed $5,000 a year.

SEC. 2. The original and two duplicate originals or certified copies of any document required or authorized to be published under section 5 shall be filed with the Division, which shall be open for that purpose during all hours of the working days when the Archives Building shall be open for official business. The Director of the Division shall cause to be noted on the original and duplicate originals or certified copies of each document the day and hour of filing thereof: *Provided,* That when the original is issued, prescribed, or promulgated outside of the District of Columbia and certified copies are filed before the filing of the original, the notation shall be of the day and hour of filing of the certified copies. Upon such filing, at least one copy shall be immediately available for public inspection in the office of the Director of the Division. The original shall be retained in the archives of the National Archives Establishment and shall be available for inspection under regulations to be prescribed by the Archivist. The Division shall transmit immediately to the Government Printing Office for printing, as provided in this Act, one duplicate original or certified copy of each document required or authorized to be published under section 5. Every Federal agency shall cause to be transmitted for filing as herein required the original and the duplicate originals or certified copies of all such documents issued, prescribed, or promulgated by the agency.

SEC. 3. All documents required or authorized to be published under section 5 shall be printed and distributed forthwith by the Government Printing Office in a serial publication designated the "Federal Register." It shall be the duty of the Public Printer to make available the facilities of the Government Printing Office for the prompt printing and distribution of the Federal Register in the manner and at the times required in accordance with the provisions of this Act and the regulations prescribed hereunder. The contents of the daily issues shall be indexed and shall comprise all documents, required or authorized to be published, filed with the Division up to such time of the day immediately preceding the day of distribution as shall be fixed by regulations hereunder. There shall be printed with each document a copy of the notation, required to be made under section 2, of the day and hour when, upon filing with the Division, such document was made available for public inspection. Distribution shall be made by delivery or by deposit at a post office at such time in the morning of the day of distribution as shall be fixed by such regulations prescribed hereunder. The prices to be charged for the Federal Register may be fixed by the administrative committee established by section 6 without reference to the restrictions placed upon and fixed for the sale of Government publications by section 1 of the Act of May 11, 1922, and section 307 of the Act of June 30, 1932 (U. S. C., title 44, secs. 72 and 72a), and any amendments thereto.

SEC. 4. As used in this Act, unless the context otherwise requires, the term "document" means any Presidential proclamation or Executive order and any order, regulation, rule, certificate, code of fair competition, license, notice, or similar instrument issued, prescribed, or promulgated by a Federal agency; the terms "Federal agency" or "agency" mean the President of the United States, or any executive department, independent board, establishment, bureau, agency, institution, commission, or separate office of the administrative branch of the Government of the United States but not the legislative or judicial branches of the Government; and the term "person" means any individual, partnership, association, or corporation.

SEC. 5. (a) There shall be published in the Federal Register (1) all Presidential proclamations and Executive orders, except such as have no general applicability and legal effect or are effective only against Federal agencies or persons in their capacity as officers, agents, or employees thereof; (2) such documents or classes of documents as the President shall determine from time to time have general applicability and legal effect; and (3) such documents or classes of documents as may be required so to be published by Act of the Congress: *Provided,* That for the purposes of this Act every document or order which shall prescribe a penalty shall be deemed to have general applicability and legal effect.

(b) In addition to the foregoing there shall also be published in the Federal Register such other documents or classes of documents as may be authorized to be published pursuant hereto by regulations prescribed hereunder with the approval of the President, but in no case shall comments or news items of any character whatsoever be authorized to be published in the Federal Register.

SEC. 6. There is established a permanent Administrative Committee of three members consisting of the Archivist or Acting Archivist, who shall be chairman, an officer of the Department of Justice designated by the Attorney General, and the Public Printer or Acting Public Printer. The Director of the Division shall act as secretary of the committee. The committee shall prescribe, with the approval of the President, regulations for carrying out the provisions of this Act. Such regulations shall provide, among other things: (a) The manner of certification of copies required to be certified under section 2, which certification may be permitted to be based upon confirmed communications from outside of the District of Columbia; (b) the documents which shall be authorized pursuant to section 5 (b) to be published in the Federal Register; (c) the manner and form in which the Federal Register shall be printed, reprinted, compiled, indexed, bound, and distributed; (d) the number of copies of the Federal Register which shall be printed, reprinted, and compiled, the number which shall be distributed without charge to Members of Congress, officers and employees of the United States, or any Federal agency for their official use, and the number which shall be available

for distribution to the public; and (e) the prices to be charged for individual copies of, and subscriptions to, the Federal Register and reprints and bound volumes thereof.

SEC. 7. No document required under section 5 (a) to be published in the Federal Register shall be valid as against any person who has not had actual knowledge thereof until the duplicate originals or certified copies of the document shall have been filed with the Division and a copy made available for public inspection as provided in section 2; and, unless otherwise specifically provided by statute, such filing of any document, required or authorized to be published under section 5, shall, except in cases where notice by publication is insufficient in law, be sufficient to give notice of the contents of such document to any person subject thereto or affected thereby. The publication in the Federal Register of any document shall create a rebuttable presumption (a) that it was duly issued, prescribed, or promulgated; (b) that it was duly filed with the Division and made available for public inspection at the day and hour stated in the printed notation; (c) that the copy contained in the Federal Register is a true copy of the original; and, (d) that all requirements of this Act and the regulations prescribed hereunder relative to such document have been complied with. The contents of the Federal Register shall be judicially noticed and, without prejudice to any other mode of citation, may be cited by volume and page number.

SEC. 8. Whenever notice of hearing or of opportunity to be heard is required or authorized to be given by or under an Act of the Congress, or may otherwise properly be given, the notice shall be deemed to have been duly given to all persons residing within the continental United States (not including Alaska), except in cases where notice by publication is insufficient in law, if said notice shall be published in the Federal Register at such time that the period between the publication and the date fixed in such notice for the hearing or for the termination of the opportunity to be heard shall be (a) not less than the time specifically prescribed for the publication of the notice by the appropriate Act of the Congress; or (b) not less than fifteen days when no time for publication is specifically prescribed by the Act, without prejudice, however, to the effectiveness of any notice of less than fifteen days where such shorter period is reasonable.

SEC. 9. Every payment made for the Federal Register shall be covered into the Treasury as a miscellaneous receipt. The cost of printing, reprinting, wrapping, binding, and distributing the Federal Register and any other expenses incurred by the Government Printing Office in carrying out the duties placed upon it by this Act shall be borne by the appropriations to the Government Printing Office and such appropriations are hereby made available, and are authorized to be increased by such additional sums as are necessary for such purposes, such increases to be based upon estimates submitted by the Public Printer. The purposes for which appropriations are available and are authorized to be made under section 10 of the Act entitled "An Act to establish a National Archives of the United States Government, and for other purposes" (48 Stat. 1122) are enlarged to cover the additional duties placed upon the National Archives Establishment by the provisions of this Act. Copies of the Federal Register mailed by the Government shall be entitled to the free use of the United States mails in the same manner as the official mail of the executive departments of the Government. The cost of mailing the Federal Register to officers and employees of Federal agencies in foreign countries shall be borne by the respective agencies.

SEC. 10. The provisions of section 2 shall become effective sixty days after the date of approval of this Act and the publication of the Federal Register shall begin within three business days thereafter: *Provided*, That the appropriations involved have been increased as required by section 9 of this Act. The limitations upon the effectiveness of documents required, under section 5 (a), to be published in the Federal Register shall not be operative as to any document issued, prescribed, or promulgated prior to the date when such document is first required by this or subsequent Act of the Congress or by Executive order to be published in the Federal Register.

SEC. 11. Within six months after the approval of this Act each agency shall prepare and file with the committee a complete compilation of all documents which have been issued or promulgated prior to the date documents are required or authorized by this Act to be published in the Federal Register and which are still in force and effect and relied upon by the agency as authority for, or invoked or used by it in the discharge of, any of its functions or activities. The committee shall within sixty days thereafter report with respect thereto to the President, who shall determine which of such documents have general applicability and legal effect, and shall authorize the publication thereof in a special or supplemental edition or issue of the Federal Register. Such special or supplemental editions or issues shall be distributed in the same manner as regular editions or issues, and shall be included in the bound volumes of the Federal Register as supplements thereto.

SEC. 12. Nothing in this Act shall be construed to apply to treaties, conventions, protocols, and other international agreements, or proclamations thereof by the President.

SEC. 13. All Acts or parts of Acts in conflict with this Act are hereby repealed insofar as they conflict herewith.

SEC. 14. This Act may be cited as the "Federal Register Act."

Approved, July 26, 1935.